ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	148th Commission Meeting
DATE:	25 October, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Review the 1st journal on 'perception of corruption in Bhutanese electoral system' - EAD *Kinzang Gyeltshen from EAD presented the draft (attached) journal for publication in the Druk Journal.*	**The Commission endorsed the draft and noted that the article is in line with the 'usage of ACC's survey data and journal publication guidelines' adopted on 27th January, 2023.**
2	Apprise way forward on Annual Report 2022-23– PPD	**As proposed, the Commission directed PPD to disseminate the ACC's Annual Report for FY 2022-23 in the form of series, similar to the NIA 2022 series, and where possible design infographics.** **However, PPD to be mindful of the election period.**
3	Apprise on proposal from Social Media Matters of India – PPD *As a follow-up to its meeting with the ED & PPD, the expert team from Social Media Matters submitted a proposal to engage the ACC to enhance its social media management. The proposal was based on the audit of the ACC's social media channels. However, PPD apprised that the proposal was very general and foundational.*	**The Commission directed PPD to initiate discussion with the Social Media Matters from India to conduct a session for the management team during one of their visits to Bhutan. This was to maximize from their presence in Bhutan to enhance ACC's capacity on social media management.**
4	Present proposal on restorative justice on IVR – DoPS & LD *DoPS and LD presented the attached draft guidelines for incorporating the restorative justice in integrity vetting report.*	**The Commission directed DoPS and LD to revise the following in the current draft guideline and appropriately incorporate in the existing Rules for Integrity Vetting 2022:** • **Revisit the definition of restorative justice application on the integrity vetting report, in particular use of terms such as "rehabilitate" and "waiving" in keeping with its objective to provide opportunity for individuals to make corrections upon completion of specific period.**

		• **Revisit the categorization of the sanctions, aligning it to service condition of the different sectors.** • **Revisit the cooling-off period for administrative sanctions, as minimum of six months.** • **Segregate the application of the restorative justice for administrative sanctions by level of sanctions (major or minor) and not by type of sanctions.** • **Further, for criminal sanction on petty misdemeanor, upon completion of conviction period, the cooling off period was directed to be revised to 1 year, at least. For misdemeanor, upon completion of the conviction period, the cooling off period to be revised to 1 to 3 years. Similarly, directed to revisit the colling off period for felony.** **Directed to make it clear that the applicability of the restorative justice on criminal conviction for petty misdemeanor and above shall be only for award of contract.** **In general, the Commission directed DoPS to revisit the draft in the format of a concept paper, also including some statistics.** **DoPS and LD to present the revised concept paper and the revised section of the Rules for Integrity Vetting 2022 to the Commission.**
5	Apprise on MoU with ICAC, Mauritius – PPD *Upon receiving approval to sign MoU with ICAC of Mauritius from the Cabinet Secretariat, the PPD submitted two proposals; either to sign the MoU virtually (sharing through post) within December 2023 or sign in-person by hosting a pending exchange program after the election period in 2024.*	**The Commission directed PPD to share the proposals with the ICAC, Mauritius for their views.**
6	Apprise proposal on in-house experience sharing session - PPD	**The Commission approved the proposed in-house experience sharing session, involving Kin Dorji, AD of DoPE and Phuntsho Namgay, Head of DARe.** **Further, directed PPD to organize similar motivation and experience sharing sessions, on a regular basis, by engaging Heads of LD and PPD; DG of DoI and Director of DoPS, and Chiefs of ED and PD.**

7	Apprise proposal on retention of critical mass – Kinzang Jamtsho *Kinzang Jamtsho of DoI presented a proposal on retention of critical mass as directed by the Commission.*	**The Commission commended Kinzang's initiative in taking this additional responsibility while also managing the regular investigation.** **In principle, the Commission endorsed the proposal. Hereafter, the Commission directed PPD to further work on the proposal. Following were the specific directive of the Commission:** • **Promote diversity as well as inclusivity covering experience, expertise, performance, among others;** • **Ascertain appropriate threshold percentage for the group vis-à-vis the approved staff strength;** • **Promote fluid composition of the group, based on performance and potential of the individuals but for an appropriate time frame;** • **Define the term "critical mass";** • **Revisit the strategies for recognizing and retaining.** **The Commission directed PPD to expedite the proposal and present to the Commission.**

Commissioner **Commissioner** **Chairperson**

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